

Opinion of the Court

Jeffrey A. Lamken argued the cause for petitioners in No. 15–1363. With him on the briefs were *Michael G. Pattillo, Jr.*, *Eric R. Nitz*, *James A. Barta*, *Clifton S. Elgarten*, *Kate M. Growley*, and *Debra L. Roth*.

Rachel A. Meeropol argued the cause for respondents in all cases. With her on the brief were *Michael Winger*, *Baher A. Azmy*, *Shayana Kadidal*, *Alexander A. Reinert*, *Nancy L. Kestenbaum*, and *David M. Zionts*.[†]

JUSTICE KENNEDY delivered the opinion of the Court, except as to Part IV–B.

After the September 11 terrorist attacks in this country, and in response to the deaths, destruction, and dangers they caused, the United States Government ordered hundreds of illegal aliens to be taken into custody and held. Pending a determination whether a particular detainee had connections to terrorism, the custody, under harsh conditions to be described, continued. In many instances custody lasted for days and weeks, then stretching into months. Later, some

[†]*Richard A. Samp* filed a brief in all cases for Former U. S. Attorney General William P. Barr et al. as *amici curiae* urging reversal.

Briefs of *amici curiae* urging affirmance in all cases were filed for the American Association for Justice by *Jeffrey R. White* and *Julie Braman Kane*; for the American Civil Liberties Union et al. by *Matthew E. Price*, *Trina Realmuto*, *Hina Shamsi*, *Lee Gelernt*, *David Cole*, *Jonathan Hafetz*, *Matt Adams*, *Mary A. Kenney*, and *Eugene Iredale*; for Americans United for Separation of Church and State et al. by *Richard B. Katskee* and *Elliot M. Minberg*; for Asian Americans Advancing Justice et al. by *Catherine E. Stetson*; for the Commonwealth Lawyers Association by *Gary A. Isaac* and *Logan A. Steiner*; for Former Correctional Officials by *Andrew S. Pollis*; for Immigration Detention Advocacy Organizations by *Brian J. Murray* and *Ranjana Natarajan*; for Medical and Other Scientific and Health-Related Professionals by *Eric Ordway*, *Kami Lizarraga*, *Glenda Bleiberg*, and *Alexandria Swette*; and for Karen Korematsu et al. by *Joseph Margulies*, *Robert L. Rusky*, and *Eric K. Yamamoto*.

Allan Ides, pro se, filed a brief in all cases for Professors of Civil Procedure as *amici curiae*.